

# Wyoming Family Alliance Four Pillars Survey

## Sources and Background

**Note:** This document supports a proof-of-concept survey built by **Skovgard for Senate**. The survey and this document are not affiliated with, endorsed by, or reviewed by **Wyoming Family Alliance**. The survey is non-binding. It is intended to help Wyoming voters review public policy questions and share input in a transparent way. It does not create binding policy, legal action, or an official position for any organization.

## Purpose of this document

This background document explains why the survey asks about Life, Religious Liberty, Family Values, and Education Freedom. It also lists the legal and public sources used to frame the questions. Reading this document is optional and is not required to answer the survey. The questions are intended to measure opinion, not persuade voters toward a preferred answer.

This document is for civic education only. It is not legal advice. Courts, lawmakers, and voters may reach different conclusions about how the Wyoming Constitution, state law, and federal law apply to future proposals.

## Forum context

Wyoming Family Alliance described its June 9, 2026 candidate forum as focused on Life, Religious Liberty, Family Values, and Education Freedom. The public forum description said candidates may interpret and apply those principles in different ways. That is why this proof-of-concept survey asks voters to consider both policy outcomes and lawful process.

## How Wyoming can change law or the Constitution

- **Legislative action:** The Wyoming Legislature may pass state laws within constitutional limits.
- **Citizen ballot initiative:** Wyoming voters may propose and enact laws by initiative. The initiative process is for statutes, not direct constitutional amendments. Article 3, Section 52 also restricts initiatives in certain areas, including appropriations and measures the Legislature itself is constitutionally prohibited from enacting.
- **Constitutional amendment:** Under Article 20, Section 1, constitutional amendments are proposed through the Legislature. If two-thirds of each legislative chamber agrees, the proposed amendment is submitted to voters for approval.
- **Court review:** A law can be challenged in court if people claim it violates the Wyoming Constitution or federal law.

## Part One: Life

The Life section asks about abortion law, medical decision-making, exceptions, enforcement, and pregnancy support. The central Wyoming constitutional issue is Article 1, Section 38, which protects competent adults in making health-care decisions.

In *State v. Johnson*, the Wyoming Supreme Court summary states that all five justices agreed the decision whether to terminate or continue a pregnancy is a woman's own health-care decision protected by Article 1, Section 38. The majority held that the 2023 abortion laws before the Court were unconstitutional. The Court also noted that lawmakers could ask Wyoming voters to consider a constitutional amendment that more clearly addresses the issue.

## Part Two: Religious Liberty

The Religious Liberty section asks about free exercise of religion, conscience protections, public programs, public schools, public meetings, and expressive services. Wyoming Article 1, Section 18 protects religious profession and worship without discrimination or preference, while also saying liberty of conscience does not excuse practices inconsistent with the peace or safety of the state.

Wyoming Article 1, Section 19 says no state money shall be given or appropriated to any sectarian or religious society or institution. Article 3, Section 36 also limits appropriations to denominational or sectarian institutions or associations. These provisions matter when a public program includes faith-based organizations or religious institutions.

Federal First Amendment cases also matter. The U.S. Supreme Court has held that states may not exclude religious participants from otherwise generally available public benefit programs solely because of religious status. The details of each program matter, especially whether funds support public services, private choice, religious instruction, or direct institutional support.

## **Part Three: Family Values**

The Family Values section asks about parental rights, school transparency, curriculum notice, questionnaires, social media access, library or school materials, child protection, and who should drive major changes.

Federal constitutional law recognizes parental authority in the care, custody, and control of children, while states retain authority to protect child safety and set public education standards. Wyoming proposals in this area may also raise free speech, privacy, due process, and health-care decision questions.

The survey includes a question modeled on international social media age-restriction debates. Australia's eSafety Commissioner says that, as of December 10, 2025, age-restricted social media platforms must take reasonable steps to prevent Australians under 16 from creating or keeping an account. The Australian model is not a full internet ban; it focuses on social media accounts and platform duties.

## **Part Four: Education Freedom**

The Education Freedom section asks about public school funds, private schools, religious schools, homeschool families, education savings accounts or scholarships, accountability, rural school effects, and whether a constitutional amendment should be considered.

Wyoming Article 7, Section 8 says no portion of any public school fund shall ever be used to support or assist any private school or any school or institution of learning controlled by a church, sectarian organization, or religious denomination. Article 7, Section 12 prohibits sectarian instruction in state-controlled schools.

A Wyoming Legislative Service Office memorandum on education savings accounts states that Article 7, Section 8 strictly prohibits public school funds from being used to support or assist private or religious schools. The same area of law also intersects with federal cases on equal treatment of religious schools in generally available public benefit programs.

## Source list

| Source                                                                                                                                                                                                                                                                                                                             | Why it matters to the survey                                                                                                                                   |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Wyoming Family Conservative Candidate Forum page, Wyoming Family Alliance. <a href="https://wyomingfamily.org/event/candidate-forum/">https://wyomingfamily.org/event/candidate-forum/</a>                                                                                                                                         | Identifies the public forum, date, location, host, and the four policy areas: Life, Religious Liberty, Family Values, and Education Freedom.                   |
| Wyoming Constitution, Title 97, Wyoming Legislature. <a href="https://wyoleg.gov/statutes/compress/title97.pdf">https://wyoleg.gov/statutes/compress/title97.pdf</a>                                                                                                                                                               | Primary source for Article 1, Sections 18, 19, 20, 27, 34, 37, and 38; Article 3, Sections 36 and 52; Article 7, Sections 8 and 12; and Article 20, Section 1. |
| Wyoming Supreme Court public summary, State v. Johnson, No. S-24-0326, 2026 WY 1. <a href="https://www.wyo.courts.gov/app/uploads/2026/01/S-24-0326-State-v.-Johnson-Summary.pdf">https://www.wyo.courts.gov/app/uploads/2026/01/S-24-0326-State-v.-Johnson-Summary.pdf</a>                                                        | Explains the Court's abortion ruling, Article 1, Section 38, and why a constitutional amendment question is relevant.                                          |
| Wyoming Legislative Service Office memorandum, Wyoming education savings accounts, 24LSO-0052. <a href="https://wyoleg.gov/InterimCommittee/2023/04-2023080804-02_24LSO-0052_WyomingeducationavingsaccountsJEC.pdf">https://wyoleg.gov/InterimCommittee/2023/04-2023080804-02_24LSO-0052_WyomingeducationavingsaccountsJEC.pdf</a> | Explains constitutional concerns around education savings accounts, public funds, private schools, and religious schools.                                      |
| U.S. Supreme Court, Trinity Lutheran Church of Columbia, Inc. v. Comer. <a href="https://www.supremecourt.gov/opinions/16pdf/15-577_khlp.pdf">https://www.supremecourt.gov/opinions/16pdf/15-577_khlp.pdf</a>                                                                                                                      | Part of the federal religious-liberty and public-benefit framework.                                                                                            |
| U.S. Supreme Court, Espinoza v. Montana Department of Revenue. <a href="https://www.supremecourt.gov/opinions/19pdf/18-1195_g314.pdf">https://www.supremecourt.gov/opinions/19pdf/18-1195_g314.pdf</a>                                                                                                                             | Part of the federal law on religious schools and generally available public benefit programs.                                                                  |
| U.S. Supreme Court, Carson v. Makin. <a href="https://www.supremecourt.gov/opinions/21pdf/20-1088_dbfi.pdf">https://www.supremecourt.gov/opinions/21pdf/20-1088_dbfi.pdf</a>                                                                                                                                                       | Part of the federal law on private school tuition assistance and religious exclusion.                                                                          |
| U.S. Supreme Court, Troxel v. Granville. <a href="https://tile.loc.gov/storage-services/service/ll/usrep/usrep530/usrep530057/usrep530057.pdf">https://tile.loc.gov/storage-services/service/ll/usrep/usrep530/usrep530057/usrep530057.pdf</a>                                                                                     | Part of the federal parental-rights background for family-policy questions.                                                                                    |
| Australian eSafety Commissioner, Social media age restrictions. <a href="https://www.esafety.gov.au/about-us/industry-regulation/social-media-age-restrictions">https://www.esafety.gov.au/about-us/industry-regulation/social-media-age-restrictions</a>                                                                          | Provides an international model for minimum-age rules for social media accounts and platform compliance duties.                                                |

## Limits of this background document

This document summarizes public sources for survey participants. It does not tell voters how to answer. It does not predict how any court will rule on a future law, initiative, funding program, or constitutional amendment.